

Smt. Nussarat Jahan v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 31 May 2024 · 2024:AHC-LKO:42016-DB · WRIT - C No. 5040 of 2024 · **Directed to apply under Paragraph 6.5; coercive recovery stayed if filed within a week.**

HEADNOTE

A writ for mandamus to correct a meter reading, against a bill the consumer put at Rs.28,579/- and the licensee at Rs.31,546/-, was disposed of by directing an application under Paragraph 6.5 of the Electricity Supply Code before opposite party no. 2 within one week, to be decided within three weeks. Coercive recovery of Rs.31,546/- was stayed for five weeks or until that decision, whichever was earlier, and the stay was to lapse if the application was not filed in time.

FACTUAL SUMMARY

Smt. Nussarat Jahan petitioned the Lucknow Bench for a mandamus directing U.P. Power Corporation Limited to correct her meter reading in accordance with law. She alleged that the respondents had raised an arbitrary electricity bill of Rs.28,579/- and had not considered her representation. Counsel for the licensee told the Court that a statutory remedy was available under Paragraph 6.5 of the Electricity Supply Code and that, after a proper meter reading, the bill stood at Rs.31,546/-.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

Meter-reading bill dispute relegated to Paragraph 6.5 with a conditional stay of recovery

HOLDING

A consumer who seeks mandamus to correct a meter reading and disputes the resulting bill must pursue Paragraph 6.5 of the Electricity Supply Code. The writ was disposed of with a direction to file that application before opposite party no. 2 within one week; if filed in time, that authority must complete the applicable formalities and decide it in accordance with the statutory provisions within three weeks. Coercive recovery of Rs.31,546/- stays for five weeks or until the decision, whichever is earlier, and the protection lapses if the application is not filed within one week. ¶ 4-6

PRINCIPLE TAGS

meter-reading-dispute-clause-6.5 The prayer was to correct the meter reading. The consumer alleged a bill of Rs.28,579/-; the licensee said a proper reading produced Rs.31,546/- and invoked Paragraph 6.5. The Court sent the dispute to that remedy. ¶ 2-5

article-226-alternate-remedy-up-supply-code-6.5 The writ was disposed of by directing an application under Paragraph 6.5 before opposite party no. 2 within one week, to be decided in accordance with the statutory provisions within three weeks, without a merits finding on the bill. ¶ 4-5

para-6.5-objection-before-coercive-recovery Coercive recovery of Rs.31,546/- was stayed for five weeks or until the Paragraph 6.5 decision, whichever was earlier, and only if the application was filed within one week. ¶ 6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE METER READING AND THE BILL OF RS.28,579/- OR RS.31,546/- WERE CORRECT.

Left to opposite party no. 2 on a timely application under Paragraph 6.5. ¶ 3-5

